



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

SB 1049: spousal maintenance; income; property

NGUYEN FLOOR AMENDMENT

1. Directs the court to terminate spousal maintenance, unless a written agreement provides otherwise, if the spouse receiving maintenance remarries or if the court finds that the spouse receiving maintenance has habitually cohabitated with an individual in a relationship analogous to marriage.
2. Directs the court, if spousal maintenance is terminated due to one of the aforementioned circumstances, to order the reimbursement of any improperly paid maintenance to the spouse who originally paid the maintenance.
3. Outlines the types of evidence that the court is allowed to consider when deciding whether a spouse has habitually cohabitated with another individual while in a relationship analogous to marriage.
4. Allows a spouse to petition the court for termination of an award of spousal maintenance at any time.
5. Stipulates that this Act applies to all proceedings relating to spousal maintenance regardless of the date of the filing of a petition for dissolution of marriage or legal separation, the date of the entry for an award of spousal maintenance or the date of filing of a petition for modification of spousal maintenance.

ADDITIONAL COW
NGUYEN FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1049
(Reference to Senate engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.
[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 25-319, Arizona Revised Statutes, is amended to
3 read:

4 25-319. Spousal maintenance; supreme court guidelines;
5 computation factors; court jurisdiction;
6 termination of spousal maintenance; factors;
7 definition

8 A. In a proceeding for dissolution of marriage or legal separation,
9 or a proceeding for maintenance following dissolution of the marriage by a
10 court that lacked personal jurisdiction over the absent spouse, the court
11 may grant a maintenance order for either spouse for any of the following
12 reasons if ~~it~~ THE COURT finds that the spouse seeking maintenance:

13 1. ~~Lacks sufficient property, including property apportioned to the~~
14 ~~spouse, to~~ IS UNABLE TO provide for that spouse's OWN reasonable needs
15 THROUGH A COMBINATION OF EARNING ABILITY AND PROPERTY APPORTIONED TO THE
16 SPOUSE SEEKING MAINTENANCE.

17 2. ~~Lacks earning ability in the labor market that is adequate to be~~
18 ~~self-sufficient.~~

19 3. 2. Is the parent of a child whose age or condition is such that
20 the parent should not be required to seek employment outside the home AND
21 DOES NOT HAVE SUFFICIENT PROPERTY APPORTIONED TO THAT PARENT OR OTHER
22 INCOME SOURCES TO PROVIDE FOR THE CHILD'S REASONABLE NEEDS.

23 4. 3. Has made a significant financial or other contribution to
24 the education, training, vocational skills, career or earning ability of
25 the other spouse or has significantly reduced that spouse's income or
26 career opportunities for the benefit of the other spouse AND DOES NOT HAVE

1 SUFFICIENT PROPERTY APPORTIONED TO THE SPOUSE SEEKING MAINTENANCE OR OTHER
2 INCOME SOURCES PROVIDED FOR THAT SPOUSE'S OWN REASONABLE NEEDS.

3 ~~5.~~ 4. Had a marriage of long duration and is of an age that may
4 preclude the possibility of gaining employment adequate to be
5 self-sufficient AND DOES NOT HAVE SUFFICIENT PROPERTY APPORTIONED TO THE
6 SPOUSE SEEKING MAINTENANCE OR OTHER INCOME SOURCES TO PROVIDE FOR THAT
7 SPOUSE'S OWN REASONABLE NEEDS.

8 B. The supreme court shall establish guidelines for determining and
9 awarding spousal maintenance. The court may award spousal maintenance
10 pursuant to the guidelines only for a period of time and in an amount
11 necessary to enable the receiving spouse to become self-sufficient. THE
12 COURT MAY NOT AWARD SPOUSAL MAINTENANCE FOR A PERIOD OF MORE THAN FOUR
13 YEARS. The amount of spousal maintenance resulting from the application
14 of the guidelines shall be the amount of spousal maintenance ordered by
15 the court, unless the court finds in writing that applying the guidelines
16 would be inappropriate or unjust. The supreme court shall base the
17 guidelines and criteria for deviation from the guidelines on the following
18 relevant factors ~~listed in paragraphs 1 through 13 of this subsection and~~
19 AS considered together and weighed in conjunction with each other:

20 1. ONE-HALF OF the standard of living established during the
21 marriage.

22 2. The duration of the marriage.

23 3. The age, employment history, earning ability and physical and
24 emotional condition of the spouse seeking maintenance.

25 4. The ability of the spouse from whom maintenance is sought to
26 meet that spouse's needs while meeting those of the spouse seeking
27 maintenance.

28 5. The comparative financial resources of the spouses, including
29 their comparative earning abilities in the labor market.

30 6. The contribution of the spouse seeking maintenance to the
31 earning ability of the other spouse.

32 7. The extent to which the spouse seeking maintenance has reduced
33 that spouse's income or career opportunities for the benefit of the other
34 spouse.

35 8. The ability of both parties after the dissolution to contribute
36 to the future educational costs of their mutual children.

37 9. The financial resources of the ~~party~~ SPOUSE seeking maintenance,
38 including marital property apportioned to that spouse, and that spouse's
39 ability to meet that spouse's own needs independently.

40 10. The time necessary to acquire sufficient education or training
41 to enable the ~~party~~ SPOUSE seeking maintenance to find appropriate
42 employment and whether such education or training is readily available.

43 11. Excessive or abnormal expenditures, destruction, concealment or
44 fraudulent disposition of community, joint tenancy and other property held
45 in common.

46 12. The cost for the spouse who is seeking maintenance to obtain
47 health insurance and the reduction in the cost of health insurance for the

1 spouse from whom maintenance is sought if the spouse from whom maintenance
2 is sought is able to convert family health insurance to employee health
3 insurance after the marriage is dissolved.

4 13. All actual damages and judgments from conduct that resulted in
5 criminal conviction of either spouse in which the other spouse or a child
6 was the victim.

7 C. A maintenance order shall be made without regard to marital
8 misconduct.

9 D. If both parties agree, the maintenance order and a decree of
10 dissolution of marriage or of legal separation may state that its
11 maintenance terms shall not be modified.

12 E. UNLESS THERE IS A WRITTEN AGREEMENT BETWEEN THE PARTIES THAT
13 PROVIDES OTHERWISE, THE COURT SHALL TERMINATE SPOUSAL MAINTENANCE IF ANY
14 OF THE FOLLOWING OCCURS:

15 1. THE SPOUSE WHO IS RECEIVING SPOUSAL MAINTENANCE REMARRIES.

16 2. THE COURT FINDS BY A PREPONDERANCE OF THE EVIDENCE THAT THE
17 SPOUSE WHO IS RECEIVING SPOUSAL MAINTENANCE HAS HABITUALLY COHABITATED FOR
18 ONE YEAR OR MORE WITH ANOTHER INDIVIDUAL IN A RELATIONSHIP THAT IS
19 ANALOGOUS TO A MARRIAGE.

20 3. THE COURT FINDS BY A PREPONDERANCE OF THE EVIDENCE THAT THE
21 SPOUSE WHO IS RECEIVING SPOUSAL MAINTENANCE HAD HABITUALLY COHABITATED
22 WITH ANOTHER INDIVIDUAL IN A RELATIONSHIP ANALOGOUS TO A MARRIAGE AND
23 FAILED TO DISCLOSE THE COHABITATION DURING THE DISSOLUTION OF MARRIAGE OR
24 LEGAL SEPARATION PROCEEDING THAT RESULTED IN AN AWARD OF SPOUSAL
25 MAINTENANCE.

26 F. IF THE COURT TERMINATES AN AWARD OF SPOUSAL MAINTENANCE PURSUANT
27 TO SUBSECTION E OF THIS SECTION, THE SPOUSE WHO IS PAYING THE SPOUSAL
28 MAINTENANCE IS ENTITLED TO REIMBURSEMENT FOR ANY SPOUSAL MAINTENANCE THAT
29 WAS PAID BEGINNING ON THE DATE THAT THE SPOUSE WHO IS RECEIVING SPOUSAL
30 MAINTENANCE REMARRIED OR BEGAN HABITUALLY COHABITATING WITH ANOTHER
31 INDIVIDUAL IN A RELATIONSHIP ANALOGOUS TO A MARRIAGE. THE COURT SHALL
32 ENTER AN AWARD OF PARTIAL OR FULL REIMBURSEMENT TO THE SPOUSE WHO IS
33 PAYING SPOUSAL MAINTENANCE.

34 G. THE COURT MAY CONSIDER ALL OF THE FOLLOWING FACTORS WHEN
35 DETERMINING WHETHER THE SPOUSE WHO IS RECEIVING SPOUSAL MAINTENANCE HAS
36 HABITUALLY COHABITATED WITH ANOTHER INDIVIDUAL IN A RELATIONSHIP THAT IS
37 ANALOGOUS TO A MARRIAGE:

38 1. AN ORAL OR WRITTEN STATEMENT OR REPRESENTATION THAT IS MADE TO A
39 THIRD PARTY REGARDING THE COHABITATING RELATIONSHIP.

40 2. THE ECONOMIC DEPENDENCE OF THE COUPLE WHO ARE COHABITATING OR
41 THE ECONOMIC DEPENDENCE OF ONE PERSON ON THE OTHER.

42 3. THE CONDUCT OR COLLABORATIVE ROLES OF THE COUPLE WHO ARE
43 COHABITATING IN FURTHERANCE OF THE COUPLE'S LIFE TOGETHER.

44 4. THE BENEFIT OF THE RELATIONSHIP ON THE LIFE OF ONE OR BOTH OF
45 THE PEOPLE WHO ARE COHABITATING.

46 5. THE COMMUNITY REPUTATION OF THE COUPLE WHO ARE COHABITATING.

47 6. ANY OTHER FACTOR THAT THE COURT FINDS RELEVANT AND MATERIAL.

1 H. A SPOUSE MAY PETITION FOR TERMINATION OF AN AWARD OF SPOUSAL
2 MAINTENANCE PURSUANT TO THIS SECTION AT ANY TIME. THIS SECTION APPLIES TO
3 ALL PROCEEDINGS RELATING TO SPOUSAL MAINTENANCE, REGARDLESS OF ANY OF THE
4 FOLLOWING:

5 1. THE DATE OF THE FILING OF A PETITION FOR DISSOLUTION OF MARRIAGE
6 OR LEGAL SEPARATION THAT RESULTED IN AN AWARD OF SPOUSAL MAINTENANCE.

7 2. THE DATE OF ENTRY OF AN AWARD OF SPOUSAL MAINTENANCE.

8 3. THE DATE OF THE FILING OF A PETITION FOR MODIFICATION OF SPOUSAL
9 MAINTENANCE.]

10 [~~F.~~] [I.] Except as provided in subsection D of this section or
11 section 25-317, subsection G, the court shall maintain continuing
12 jurisdiction over the issue of maintenance for the period of time
13 maintenance is awarded.

14 [~~F.~~] [J.] FOR THE PURPOSES OF THIS SECTION, "REASONABLE NEEDS":

15 1. MEANS BASIC NECESSITIES THAT ARE NECESSARY TO ENABLE A RECEIVING
16 SPOUSE TO ACQUIRE EDUCATION OR TRAINING TO BECOME SELF-SUFFICIENT OR THAT
17 ARE NECESSARY FOR THE CARE OF A CHILD.

18 2. INCLUDES FOOD, HOUSING, UTILITIES, HEALTH INSURANCE, MEDICAL
19 EXPENSES, TRANSPORTATION AND EDUCATIONAL EXPENSES.

20 Enroll and engross to conform

21 Amend title to conform

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